

TENTATIVE RULING(S) FOR August 5, 2026

Department S22 – Judge David Driscoll

This court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings for each law & motion will be posted on the internet (<https://www.sb-court.org>) by 3:00 p.m. on the court day immediately before the hearing.

You may appear in person at the hearing although remote appearance by CourtCall is preferred. (See www.sb-court.org/general-information/remote-access).

If you do not have Internet access or if you experience difficulty with the posted tentative ruling, you may obtain the tentative ruling by calling the department (S-37) at (909) 708-8707 or the Administrative Assistant (909) 708-8756, who prepared the ruling.

If you (or both parties) wish to submit on the Tentative, notify the other party and call the department by 4:00 pm the day before and your appearance may be excused unless the Court orders you to appear.

You must appear at the hearing if you are so directed by the court in the tentative ruling. Be prepared to address those issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

CIVSB 2210092

LORETTA CARRASCO v. EXPRESS SERVICES, INC., et. al.

TENTATIVE RULING(S):

Defendant Express Services Inc. has brought a motion to bifurcate trial.

Factors to be considered in ruling on a motion to bifurcate are whether it will: (1) further the convenience of parties and witnesses, (2) avoid prejudice, (3) encourage expedition, (4) promote economy, or (5) serve the ends of justice. (Code Civ. Proc., §§1048(b) and 598; Civ. Trials & Evid. § 4:412.) An order to bifurcate the trial will not be reversed absent an abuse of discretion. (*Royal Surplus Lines Ins. Co., Inc. v. Ranger Ins. Co.* (2002) 100 Cal.App.4th 193, 205.) The ruling on a motion to sever or bifurcate rests within the trial court's sound discretion. (*Grappo v. Coventry Financial Corp.* (1991) 235 Cal.App.3d 496, 504).

The motion is denied without prejudice. There is insufficient showing of significant time savings should the damages phase be reserved until after evidentiary presentation of liability. The present moving papers do not present unique reasons why this case merits bifurcation of liability and damages beyond a typical case seeking both compensatory damages and recovery for emotional distress. There is no specific showing of a high risk of substantial prejudice to the defendant by way of inflaming or engendering jury sympathy if issues of liability and damages are litigated in a single trial. The court may reconsider a motion to bifurcate at the time of the Trial Readiness Conference after the parties have filed pre-trial pleadings, e.g. witness lists and proffered documentary evidence, for the court to better gauge considerations of time consumption and substantial prejudice to a party if bifurcation is not permitted.